

Virendra Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 March 2016 · Writ-C No. 11404 of 2016 · **Writ disposed; petitioner left to clause 6.5 bill objection.**

HEADNOTE

A writ that only disputes the amount of a U.P. Power Corporation Ltd. bill is disposed of by leaving the petitioner to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the billed amount on merits.

FACTUAL SUMMARY

Virendra Kumar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and others, including U.P. Power Corporation Ltd. He disputed the amount shown in a bill raised by the Corporation. A Division Bench of Dilip Gupta and Mukhtar Ahmad JJ. heard the matter on 10 March 2016. The Court did not test whether the billed figure was correct and instead pointed the petitioner to the statutory objection route under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer who disputes only the amount indicated in a bill raised by the licensee must pursue an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ raising that dispute is disposed of by leaving the petitioner to that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ that only disputes the amount of a U.P. Power Corporation Ltd. bill is disposed of by leaving the petitioner to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the billed amount on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT

The Court did not examine the bill on merits and left the petitioner to a clause 6.5 objection. ¶ 1